

WESEARCH (Pty) Ltd

TERMS AND CONDITIONS

IMPORTANT: These terms and conditions are aligned to South African legal principles including the Consumer Protection Act, Electronic Communications and Transactions Act, POPIA and PAIA. It is not a substitute for review by an admitted South African attorney who can assess the final business structure and operations.

1. Parties and Service

WeSearch provides independent product research, comparison, and recommendation services. The client retains sole responsibility for purchase decisions.

2. Quotations

WeSearch determines the appropriate service package after assessing client requirements. Quotations remain valid for seven business days unless otherwise stated.

3. Fees and Payment

Fifty percent deposit is payable before research commences. The balance is before release/delivery of the final report. All fees are stated in South African Rand.

4. Scope of Services

Services are limited to the agreed written scope. Additional work requires prior written approval and may incur additional fees.

5. Consumer Rights

Nothing in these terms limits or excludes rights granted under the **Consumer Protection Act 68 of 2008** or any other mandatory South African law.

6. Cancellation and Refunds

Cancellation requests will be assessed with reference to work already performed and applicable to consumer protection laws. Statutory cooling-off and other mandatory rights remain unaffected. Should a refund be agreed between the parties, Wesearch will refund the client within fourteen business days.

7. Limitation of Liability

7.1 WeSearch provides independent research, analysis, comparisons, recommendations, and informational reports based on information reasonably available at the time the research is conducted. The Client acknowledges that all recommendations constitute professional opinions and do not guarantee outcomes.

7.2 The Client retains sole responsibility for all purchasing, contracting and implementation decisions made in reliance upon any information, recommendation or report provided by WeSearch.

7.3 WeSearch does not manufacture, sell, distribute, warrant, or endorse any product, service, supplier, retailer or third party unless expressly stated in writing.

7.4 To the maximum extent permitted by applicable law, WeSearch shall not be liable for any indirect, consequential, incidental, special or punitive damages, including but not limited to loss of profits, loss of revenue, loss of business opportunities, loss of data, loss of savings, loss of goodwill or business interruption arising from or related to the use of its services.

7.5 WeSearch shall not be liable for:

- Changes in product pricing, availability, or specifications after completion of the research;
- Actions, omissions or representations of manufacturers, retailers, suppliers or other third parties;
- Product defects, failures, recalls, warranty disputes, or service issues;
- Information that was inaccurate, incomplete, or misleading when supplied by a third party and could not reasonably have been identified by WeSearch during the research process;
- Decisions made by the Client based on the research report.

7.6 Subject to clause 7.7, the total aggregate liability of WeSearch arising from or in connection with any services provided shall not exceed the total fees paid by the Client to WeSearch for the specific services giving rise to the claim.

7.7 Nothing in these Terms shall: (a) exclude or limit liability for fraud, fraudulent misrepresentation or wilful misconduct; (b) exclude or limit any rights or remedies that may not lawfully be excluded or limited under the **Consumer Protection Act 68 of 2008** or any other applicable South African legislation; or (c) be interpreted as limiting any liability that may not legally be limited or excluded.

7.8 The Client acknowledges that the fees charged by WeSearch are based upon the allocation of risk contained in these Terms and that the limitations set out in this clause are reasonable in the circumstances.

8. POPIA

Personal information is processed in accordance with **Protection of Personal Information Act 4 of 2013** and the WeSearch Privacy Policy.

9. Disputes

Parties must first attempt good-faith resolution. South African courts shall have jurisdiction unless legislation requires otherwise.

10. Governing Law

These terms are governed by the laws of the Republic of South Africa and are subject to the jurisdiction of the South African Courts.